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No Flamin' Hot Cheetos in California schools? New bill targets snacks with artificial dyes

March 13, 2024 | San Francisco Chronicle: Web Edition Articles (CA)
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OpenURL Link

A new state bill could mean the end of Flamin' Hot Cheetos and other snacks in California schools.

Assembly Bill 2316, introduced this week by Assemblymember Jesse Gabriel, D-Encino (Los Angeles County), would ban from public schools artificial dyes, including red 40 and yellow 6, which lend vibrant color to foods and drinks like Flamin' Hot Cheetos, Doritos, M&Ms and Mountain Dew. The dyes have been linked to health concerns in children including cancer, hyperactivity, harm to the immune system and neurobehavioral issues, according to an announcement from Gabriel's office.

"This is not a food ban," Gabriel said Tuesday during a news conference promoting the bill. "This is not banning Flamin' Hot Cheetos in California."

Celebrity chef Tom Colicchio appeared with Gabriel at the press conference.

It's not the first time the spicy Flamin' Hot Cheetos and their trademark red tint have sparked controversy: They've already been prohibited, due to their lack of nutritional value, by some schools in California, New Mexico and Illinois.

Frito-Lay, which makes Flamin' Hot Cheetos, did not immediately respond to a request for comment.

In a statement, the National Confectioners Association, which advocates for chocolate and candy companies, called the bill "an emotionally-driven campaign that lacks scientific backing."

Under the proposed legislation, schools could still sell food that contain the synthetic dyes at events that take place off campus or at least 30 minutes after the school day ends. The bill will now head to the Assembly Education Committee in the coming weeks.

The new legislation is part of a larger effort to eliminate "dangerous and toxic food additives," according to an announcement. It follows last year's passage of the California Food Safety Act, also authored by Assemblymember Gabriel, which will prohibit starting in 2027 the sale of foods and sodas that contain four common additives — brominated vegetable oil, potassium bromate, propylparaben and red dye 3, which are banned in the European Union. In response, Peeps removed red dye No. 3 from its popular, pastel-colored, bird-shaped marshmallows.

This story has been updated to include a comment from the National Confectioners' Association.

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- **Citation (apa Style)**
  Kadvany, E. (2024, March 13). No Flamin' Hot Cheetos in California schools? New bill targets snacks with artificial dyes*San Francisco Chronicle: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/197C82DA2D610508.